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Provision of March 7, 2024
Register of provisions
n. 138 of March 7, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the report from the Guardia di Finanza – Special Unit for Privacy Protection and Technological Fraud, transmitted by note dated March 6, 2023, which reports on a control carried out on January 19, 2023, at the premises of Hotel Milano of Foschi Eros and Righini Rina & C. Snc, located in Bellaria – Igea Marina (RN), Via Colombo 40, during which the presence of operational video surveillance cameras capable of recording the public road and areas owned by third parties was verified;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. The report received and the preliminary investigation.

On June 27, 2022, a report was received from Ms. XX, who informed this Authority of the non-compliant installation of a video surveillance system at Hotel Milano of Foschi Eros and Righini Rina & C. Snc, located in Bellaria – Igea Marina (RN), Via Colombo 40, as the cameras were said to be lacking appropriate informational signs and capable of recording areas belonging to the "Foschi" Hotel, located in Bellaria – Igea Marina, Via Colombo 41, of which Ms. XX is the legal representative, positioned directly across from Hotel Milano.

Following a request from this Office, by note dated March 6, 2023, the Guardia di Finanza – Special Unit for Privacy Protection and Technological Fraud – transmitted to this Authority the report of the control carried out on January 19, 2023, at the premises of Hotel Milano, during which the presence of a video surveillance system consisting of 20 cameras was verified.

From the photographic evidence attached to the report, it was highlighted that the cameras also recorded areas owned by third parties, in particular, the area corresponding to the entrance of Hotel Foschi, with the possibility of capturing customers entering and exiting that accommodation facility. During the verification, the legal representative of the Company stated that "the only cameras that could also concern areas not pertaining to Hotel Milano are (...) indicated in the system (...) Milano2, Milano3, Milano4, and Milano5" and that he would proceed to "reposition the cameras in question or to obscure the areas not of interest to Hotel Milano."

Regarding the positioning of the informational signs, the party represented that there are currently two informational signs indicating the intention to place additional ones at the main entrances, where he stated that, at the time, they had been positioned but had "presumably been lost due to weather

conditions.”

By note dated February 1, 2023, the party sent to the Guardia di Finanza supplementary documentation certifying the obscuring of areas not exclusively owned by Hotel Milano of Foschi Eros and Righini Rina & C. Snc, as well as the placement of new and additional informational signs in addition to those already present.

2. The initiation of the procedure.

Based on the elements acquired, the Office proceeded to notify the act of initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code concerning the violation of Articles 5 paragraph 1, letter c) and 6 of the Regulation (prot. n. 100583 of June 28, 2023).

By note dated July 28, 2023, the Company sent defensive writings stating that:

- “the duration of the processing was particularly limited given the short period of operation of the cameras from their installation following the authorization provision of December 9, 2022, as stated in the GdF report, until the obscuring that took place on February 1, 2023,”
- the images are stored for a limited period of time (24 hours, as provided for by the authorization of the Labor Inspectorate) with automatic deletion by overwriting at the end of the permitted period;
- informational signs regarding the presence of the cameras were present and, subsequently to the control, further implemented,
- “the system used for storing the images is located in a technical back-office room of the hall of the Milano Hotel, access to which is permitted to the members of Hotel Milano,”
- “access to the system is based on authentication via credentials, entrusted exclusively to the members of the Company, as administrative users”;
- “the Company has cooperated from the outset during the first inspection by providing all the documentation in its possession and taking action to address the raised issues,” providing in particular the...

“Supplementary documentation certifying the obscuring of the cameras whose visual angle was not relevant” (as per note of 1/2/2023).

3. The legal framework of the processing carried out

The use of surveillance systems may result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, with the principle of lawfulness and data minimization.

In particular, based on the provisions of the general measure regarding surveillance of April 8, 2010, in the case of capturing areas outside buildings and properties, the processing must occur “in such a way as to limit the visual angle to the area actually to be protected, avoiding the capture of surrounding places and irrelevant details (streets, buildings, commercial establishments, institutions, etc.)” (see, in particular, point 6.2.2.1 of the measure).

Similarly, the aforementioned Guidelines No. 3/2019 provide that, “in general, the necessity of using surveillance to protect the premises of the Data Controller ends at the boundaries of the property; however, for effective protection, in some cases it may be necessary to extend surveillance to the immediate vicinity of the premises. In this context, the Data Controller should consider physical and technical means, such as blocking or pixelating irrelevant areas” (3.1.2 par. 27).

4. The outcome of the investigation and the sanctioning procedure.

Based on the findings made by the Guardia di Finanza, it emerged that the surveillance system installed at the headquarters of Hotel Milano of Foschi Eros and Righini Rina & C. Snc, located in Bellaria – Igea Marina (RN), Via Colombo 40, consisted of active and functioning cameras capable of capturing the public road and areas owned by third parties (in particular, areas pertaining to the Hotel “Foschi” located in Bellaria – Igea Marina Via Colombo 41).

In this specific case, it is proven that the party has carried out the processing of personal data, through a surveillance system, not in compliance with the regulations on the protection of personal data as it was capable of capturing also the public road and areas owned by third parties (as also confirmed by the party during the inspection), in violation of the general principles of Article 5, par. 1, lett. c) and 6 of

the Regulation.

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, par. 2, of the Regulation.

The processing of personal data carried out by the Company is therefore unlawful, in the terms outlined above, in relation to Articles 5, par. 1, lett. c) (principle of minimization) and 6 of the Regulation.

The violation established in the terms of the reasoning cannot be considered “minor,” taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation).

The party, in its defense submissions, stated that it has modified the visual angle of the cameras so as to capture only the areas of exclusive relevance.

6. Injunction order.

The Authority, pursuant to Article 58, par. 2, lett. i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, par. 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the surveillance system, the unlawfulness of which has been established, in the terms outlined above, in relation to Articles 5, par. 1, lett. c) and 6 of the Regulation.

With reference to the elements listed in Article 83, par. 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, par. 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into account:

with regard to the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the suitability of the cameras to capture the public road and areas owned by third parties;

the absence of specific previous violations by the company related to breaches of the regulations on the protection of personal data;

the circumstance that the company cooperated with the Authority during the procedure, demonstrating that it has fulfilled its legal obligations by modifying the angle of capture of the cameras.

It is also considered that the economic conditions of the offender, determined with reference to the income declaration for the year 2023, are relevant in this specific case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, par. 1, of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to set the amount of the pecuniary sanction at €3,000.00 (three thousand) for the violation of Articles 5 and 6 of the Regulation.

In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, are met.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by the company Hotel Milano di Foschi Eros and Righini Rina & C. Snc, through the use of the video surveillance system installed at its premises as stated in the reasoning, for the violation of Articles 5 and 6 of the Regulation;

ORDERS

the company Hotel Milano di Foschi Eros and Righini Rina & C. Snc, VAT No. 01862780408, located in Bellaria – Igea Marina (RN), Via Colombo 40, to pay the amount of €3,000.00 (three thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

therefore the same Hotel Milano di Foschi Eros and Righini Rina & C. Snc to pay the amount of €3,000.00 (three thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 7, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei